

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
THOMAS SCOTT,

Plaintiff,

- against -

CITY OF NEW YORK, JOSEPH CUERVO,
CARMEN BENAVIDES, MICHAEL ALFANO,
ANDREW SMITH and "JOHN" SUSANA, a police officer
assigned to the 6th Precinct involved in the arrest of Plaintiff
on July 20, 2013, who is currently unidentified, first name unknown,
last name believed to be SUSANA,

Defendants.

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INDEX #:

SUMMONS

Date Purchased:

SUMMONS

Plaintiff designates New York County as the place of trial. The basis of venue is the Plaintiff's residence. Plaintiff THOMAS SCOTT resides at 200 West 136th Street, Apt 5-A, New York, New York 10030.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer; or, if the Verified Complaint is not served with this Summons, to serve a Notice of Appearance, on the plaintiff's attorney within 20 days after the service of this Summons with Notice, exclusive of this day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
February 5, 2014

Yours, etc.,

Tumelty & Spier, LLP
Attorneys for Plaintiff

160 Broadway-Suite 708
New York, New York 10038
(212) 566-4681

Defendants' addresses:

CITY OF NEW YORK
C/O Corporation Counsel
100 Church Street
New York, New York 10007

JOSEPH CUERVO, Shield # 27083
C/O 6th Precinct
233 West 10th Street
New York, New York 10014

CARMEN BENAVIDES, Shield 09861
C/O 6th Precinct
233 West 10th Street
New York, New York 10014

MICHAEL ALFANO, Shield 06172
C/O 6th Precinct
233 West 10th Street
New York, New York 10014

ANDREW SMITH
c/o 6th Precinct
233 West 10th Street
New York, New York 10014

P.O. SUSANA
c/o 6th Precinct
233 West 10th Street
New York, New York 10014

Plaintiff's residence:

THOMAS SCOTT
200 West 136th Street, Apt 5A
New York, New York 10030

NOTICE: The nature of this action is for violation of constitutional rights, false arrest, unlawful imprisonment, intentional infliction of emotional distress, assault, battery, libel, slander, defamation and other causes of action.

The relief sought is monetary damages in excess of the jurisdictional limits of all lower Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
THOMAS SCOTT,

Plaintiff,

- against -

INDEX #:

**VERIFIED
COMPLAINT.**

CITY OF NEW YORK, JOSEPH CUERVO,
CARMEN BENAVIDES, MICHAEL ALFANO,
ANDREW SMITH and "JOHN" SUSANA, a police officer
assigned to the 6th Precinct involved in the arrest of Plaintiff
on July 20, 2013, who is currently unidentified, first name unknown,
last name believed to be SUSANA,

Defendants.

-----X

Plaintiff complaining of the defendants by their attorneys, Tumelty & Spier, LLP,
hereby allege, upon information and belief, as follows:

PREAMBLE

1. This is an action to redress the deprivation by the defendants of the
rights secured to the plaintiffs by the Constitution and Laws of the United States and the State of
New York.

2. These claims are brought pursuant to Sections 1983 and 1988 of Title
42, United States Code, and other State and Federal Statutes.

3. A valid Notice of Claim for Plaintiff regarding each of the claims
herein was filed with the City of New York on or about December 7, 2012 and July 29, 2013,
respectively, within ninety (90) days of the accrual of the two claims.

4. The Plaintiff appeared and was questioned by representatives of the Defendant City of New York at Hearings pursuant to General Municipal Law section 50-H were held on October 11, 2013 and October 28, 2013, respectively.

5. More than ninety days has elapsed since the filing of the Notices of Claim and the Defendant City of New York has not settled or adjudicated this claim.

6. This action is being commenced within one year and ninety days of the accrual of the actions.

THE PARTIES

7. Plaintiff THOMAS SCOTT was and still is an adult resident of New York County, City and State of New York (hereinafter "SCOTT").

8. The defendant CITY OF NEW YORK was and still is a municipal corporation duly organized under the laws of the State of New York.

9. The defendant JOSEPH CUERVO, Shield # 27083, assigned to the 6th Precinct (hereinafter "CUERVO") is an adult resident of the State of New York.

10. At all relevant times hereinafter mentioned, the defendant CUERVO was and is an employee of the defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned, defendant CUERVO was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

12. Defendant CUERVO is sued only in his individual capacity.

13. At all times hereinafter mentioned, defendant CUERVO was acting under color of law, to wit: the laws of the State of New York and City of New York.

14. The defendant CARMEN BENAVIDES, Shield # 09861 of the 6th Precinct, (hereinafter "BENAVIDES") is an adult resident of the State of New York.

15. At all times hereinafter mentioned, the defendant BENAVIDES was and is an employee of the defendant CITY OF NEW YORK.

16. At all times hereinafter mentioned, the defendant BENAVIDES was and is a police officer employed by the defendant CITY OF NEW YORK.

17. At all times hereinafter mentioned, defendant BENAVIDES was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

18. Defendant BENAVIDES is sued only in her individual capacity.

19. That at all times hereinafter mentioned, defendant BENAVIDES was acting under color of law, to wit: the laws of the State of New York and City of New York.

20. The defendant MICHAEL ALFANO, Shield # 06172, of the 6th Precinct (hereinafter "ALFANO") is an adult resident of the State of New York.

21. At all relevant times hereinafter mentioned, the defendant ALFANO was and is an employee of the defendant CITY OF NEW YORK.

22. That at all times hereinafter mentioned, defendant ALFANO was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

23. Defendant ALFANO is sued only in his individual capacity.

24. At all times hereinafter mentioned, defendant ALFANO was acting under color of law, to wit: the laws of the State of New York and City of New York.

25. The defendant ANDREW SMITH, a police officer assigned to the 6th Precinct (hereinafter "SMITH") is an adult resident of the State of New York.

26. At all relevant times hereinafter mentioned, the defendant SMITH was and is an employee of the defendant CITY OF NEW YORK.

27. That at all times hereinafter mentioned, defendant SMITH was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

28. Defendant SMITH is sued only in his individual capacity.

29. At all times hereinafter mentioned, defendant SMITH was acting under color of law, to wit: the laws of the State of New York and City of New York.

30. The defendant "JOHN" SUSANA, a police officer assigned to the 6th Precinct, currently unidentified by name but believed to be named SUSANA who was involved in the July 20, 2013 Incident described below (hereinafter "SUSANA") is an adult resident of the State of New York.

31. At all times hereinafter mentioned, the defendant SUSANA was and is an employee of the defendant CITY OF NEW YORK.

32. At all times hereinafter mentioned, the defendant SUSANA was and is a police officer employed by the defendant CITY OF NEW YORK.

33. At all times hereinafter mentioned, defendant SUSANA was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

34. Defendant SUSANA is sued only in his individual capacity.

35. That at all times hereinafter mentioned, defendant SUSANA was acting under color of law, to wit: the laws of the State of New York and City of New York.

36. At all times mentioned in this Complaint, the individual defendants acted jointly and in concert with one another, and other police officers currently unidentified. Each defendant had the duty and the opportunity to protect the plaintiffs from the unlawful actions of the other defendants but each defendant failed and refused to perform such duty, thereby proximately causing the plaintiff's injuries.

AS AND FOR A FIRST CAUSE OF ACTION FOR UNLAWFUL SEIZURE/ FALSE ARREST/ AND FALSE IMPRISONMENT (NOVEMBER 10, 2012).

37. On November 10, 2012, at approximately 3:30 am, at the corner of West 3rd Street and the Avenue of Americas in Manhattan New York, known as the West 4th Street basketball court area, defendants CUERVO, BENAVIDES, and ALFANO, and other members of the New York City Police Department arrested, detained and seized plaintiff, SCOTT.

38. Defendant CUERVO, and other members of the New York City Police Department intended to arrest, detain, and seize the plaintiff SCOTT

39. Defendant BENAVIDES, and other members of the New York City Police Department intended to arrest, detain, and seize the plaintiff SCOTT.

40. Defendant ALFANO, and other members of the New York City Police Department intended to arrest, detain, and seize the plaintiff SCOTT.

41. At the time of the arrest, detention and seizure of the plaintiff on November 10, 2012, there was no warrant of arrest outstanding for the plaintiff SCOTT.

42. The arrest, detention and seizure of plaintiff by defendant CUERVO was unlawful.

43. The arrest, detention and seizure of plaintiff by defendant BENAVIDES was unlawful.

44. The arrest, detention and seizure of plaintiff by defendant ALFANO was unlawful.

45. There was no probable cause to arrest, detain, or seize the plaintiff.

46. There was no legal justification or excuse for the arrest, detention or seizure of the plaintiff.

47. Each defendant knew that there was no probable cause to arrest the plaintiff.

48. The plaintiff was aware and conscious of his seizure, confinement, detention, and arrest.

49. The plaintiff did not consent to the arrest, detention, or seizure of his person by defendants.

50. The Defendants committed the above acts under color of state law.

51. As the result of the foregoing, Plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, and sustained other consequential damages.

52. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION
(NOVEMBER 10, 2012).**

53. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

54. On or about November 10, 2012, defendants CUERVO, BENAVIDES and ALFANO caused the commencement of criminal proceedings against plaintiff.

55. In the aforesaid criminal proceedings, defendant BENAVIDES, CUERVO, and ALFANO alleged that plaintiff THOMAS SCOTT had committed the offenses of Criminal Possession of a Controlled Substance in the Seventh Degree and other charges.

56. Defendant BENAVIDES knew that there was no probable cause to believe that plaintiff was guilty of the offenses charged.

57. Defendant CUERVO knew that there was no probable cause to believe that plaintiffs were guilty of any of the offenses charged.

58. Defendant ALFANO knew that there was no probable cause to believe that plaintiff was guilty of any of the offenses charged.

59. There was no probable cause for the commencement of the criminal proceedings.

60. Defendant BENAVIDES acted with malice in commencing that proceeding.

61. Defendant CUERVO acted with malice in commencing that proceeding.

62. Defendant ALFANO acted with malice in commencing that proceeding.

63. The criminal charges were prosecuted against Plaintiff from November 10 through November 21, 2012, during which time Plaintiff remained incarcerated on the charges.

64. On November 21, 2012 the criminal charges brought against plaintiff SCOTT were dismissed and the criminal court file was ordered sealed.

65. Plaintiffs SCOTT received a favorable termination of the criminal proceedings.

66. The nature of the termination was sufficient to support cause of action for malicious prosecution.

67. Plaintiff remained seized in a constitutional sense throughout the pendency of the criminal proceedings from November 10, 2012 through November 21, 2012.

68. As the result of the foregoing, plaintiff was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, and other damages.

69. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT
(NOVEMBER 10, 2012).**

70. Plaintiff repeats the preceding paragraphs as if fully set forth.

71. That during the arrest of Plaintiff, the officers caused Plaintiff to reasonably fear that the Defendants were about to cause a harmful and offensive bodily contact with the person of the Plaintiff.

72. That the Defendants intentionally acted to placed Plaintiff in fear of this harmful and offensive contact.

73. That the Defendants did grab Plaintiff and forcibly knock Plaintiff to the ground, did handcuff Plaintiff, and did caused physical contacts to Plaintiff's person.

74. That the acts of the Defendants were not justified.

75. That due to the above acts of the Defendants the Plaintiff sustained damages.

76. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY
(NOVEMBER 10, 2012).**

77. Plaintiff repeats the preceding paragraphs as if fully set forth.

78. That during the arrest of Plaintiff, the officers did cause a harmful and offensive bodily contact with the person of the Plaintiff.

79. That at the 6th Precinct during arrest processing the Plaintiff was forced to submit to a strip search by the Defendants.

80. That the Defendants acted intentionally in causing the harmful and offensive physical contact with the Plaintiff.

81. That the Plaintiff did not consent to the offensive and harmful contacts.

82. That the acts of the Defendants were not justified.

83. That due to the above acts of the Defendants the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE DEFENDANTS FOR VIOLATION OF CONSTITUTIONAL RIGHTS § 1983.
(NOVEMBER 10, 2012)

84. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

85. That the above actions by the Defendants violated the rights granted to Plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such Plaintiff seeks relief pursuant to 42 USC § 1983.

86. That due to the above acts of the Defendants the Plaintiff sustained damages.

87. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST THE DEFENDANTS FOR VIOLATION OF STATE CONSTITUTIONAL RIGHTS (NOVEMBER 10, 2012).

88. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

89. That the acts of the defendants violated the rights granted to the Plaintiff pursuant to Article 1 § 12 of the New York State Constitution. As such Plaintiff seeks relief pursuant to *Brown v. State*, 89 NY2d 172 (1996).

90. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR UNLAWFUL SEIZURE/ FALSE ARREST/ AND FALSE IMPRISONMENT (JULY 20, 2013).

91. On July 20, 2013, at approximately 6:00 pm, at the North side of Washington Square Park, nearest to the Chess tables located thereat in Manhattan New York, defendants SMITH, SUSANA and three other police officers of the New York City Police Department arrested, detained and seized plaintiff, SCOTT.

92. Defendant SMITH , and other members of the New York City Police Department intended to arrest, detain, and seize the plaintiff SCOTT

93. Defendant SUSANA, and other members of the New York City Police Department intended to arrest, detain, and seize the plaintiff SCOTT.

94. At the time of the arrest, detention and seizure of the plaintiff on July 20, 2013, there was no warrant of arrest outstanding for the plaintiff SCOTT.

95. The arrest, detention and seizure of plaintiff by defendant SMITH were unlawful.

96. The arrest, detention and seizure of plaintiff by defendant SUSANA were unlawful.

97. There was no probable cause to arrest, detain, or seize the plaintiff.

98. There was no legal justification or excuse for the arrest, detention or seizure of the plaintiff.

99. Each defendant knew that there was no probable cause to arrest the plaintiff.

100. The plaintiff was aware and conscious of his seizure, confinement, detention, and arrest.

101. The plaintiff did not consent to the arrest, detention, or seizure of his person by defendants.

102. The Defendants committed the above acts under color of state law.

103. As the result of the foregoing, Plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, and sustained other consequential damages.

104. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR ASSAULT
(JULY 20, 2013).**

105. Plaintiff repeats the preceding paragraphs as if fully set forth.

106. That during the arrest of Plaintiff ON July 20, 2013, the officers caused Plaintiff to reasonably fear that the Defendants were about to cause a harmful and offensive bodily contact with the person of the Plaintiff.

107. That the Defendants intentionally acted to place Plaintiff in fear of this harmful and offensive contact.

108. That the Defendants did grab Plaintiff and forcibly handcuff Plaintiff and did caused physical contacts to Plaintiff's person.

109. That the acts of the Defendants were not justified.

110. That due to the above acts of the Defendants the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION FOR BATTERY (JULY 20, 2013).

111. Plaintiff repeats the preceding paragraphs as if fully set forth.

112. That during the arrest of Plaintiff on July 20, 2013, the officers did cause a harmful and offensive bodily contact with the person of the Plaintiff.

113. That at the 6th Precinct during arrest processing the Plaintiff was forced to submit to a strip search by the Defendants.

114. That the Defendants acted intentionally in causing the harmful and offensive physical contact with the Plaintiff.

115. That the Plaintiff did not consent to the offensive and harmful contacts.

116. That the acts of the Defendants were not justified.

117. That due to the above acts of the Defendants the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST THE DEFENDANTS FOR VIOLATION OF CONSTITUTIONAL RIGHTS § 1983 (JULY 20, 2013).

118. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

119. That the above actions by the Defendants violated the rights granted to Plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such Plaintiff seeks relief pursuant to 42 USC § 1983.

120. That due to the above acts of the Defendants the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR AN ELEVENTH CAUSE OF ACTION AGAINST THE DEFENDANTS FOR VIOLATION OF STATE CONSTITUTIONAL RIGHTS (JULY 20, 2013).

121. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

122. That the acts of the defendants violated the rights granted to the Plaintiff pursuant to Article 1 § 12 of the New York State Constitution. As such Plaintiff seeks relief pursuant to *Brown v. State*, 89 NY2d 172 (1996).

123. That due to the above acts of the Defendants the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK (NOVEMBER 10, 2012 AND JULY 20, 2013).

124. Plaintiff repeats the preceding paragraphs as if fully set forth.

125. That the City of New York had a formal policy in place regarding the handling of drug arrests by NYPD police officers that was promulgated and adopted.

126. That at the time of the claims herein there was in existence the unlawful practice of arresting persons on less than probable cause by subordinate officials that was so permanent and well settled and pervasive in the New York City Police Department so as to

constitute a “custom or usage” which practice is so manifest as to imply the acquiescence of this custom and usage by policy making officials of the Defendant City of New York.

127. That the failure by the Defendant City of New York to properly train and supervise their police officer employees, including these co-defendants, and the other unidentified police officers involved in Plaintiff’s arrest, amounts to a deliberate indifference to the rights of those with whom the municipalities employees interact.

128. That the co-defendants and other unidentified police officers violated the constitutional rights of the Plaintiff as set forth above and due to the policies and practices of the Defendant City of New York.

129. Due to the above, the Plaintiff has sustained damages that exceed the Jurisdictional limits of all lower courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AGAINST CITY OF
NEW YORK (NOVEMBER 10, 2012 AND JULY 20, 2013).**

130. Plaintiff repeats the preceding paragraphs as if fully set forth.

131. That the Defendant City of New is responsible for the acts of their employees, as set forth above.

132. That the acts of the individual defendants violated the rights granted to the plaintiffs pursuant to Article 1, §12 of the New York State Constitution. As such, plaintiffs seek relief pursuant to *Brown v. State*, 89 N.Y.2d 172 (1996).

133. The unlawful acts of the individual defendants, as set forth above, were permitted, condoned and ratified by the New York City Police Department and said conduct was part of a systemic custom and practice, and occurred due to the negligence and gross negligence of the City of New York and its agent the New York City Police Department.

134. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

ARTICLE 16 IS INAPPLICABLE TO INSTANT ACTION

135. The provisions of Article 16 to the CPLR of the State of New York do not apply to the instant action.

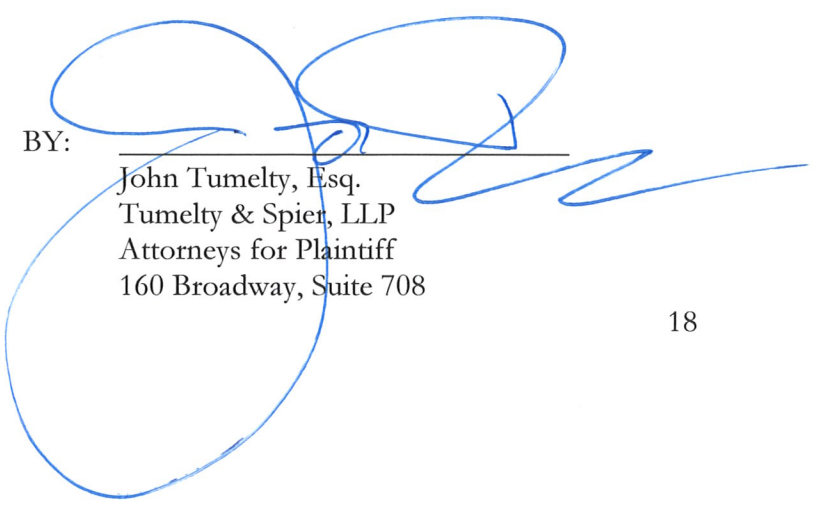
136. The defendants acted with intent.

137. The defendants acted knowingly or intentionally, jointly, in concert, and in a conspiracy to "cover-up" the unlawful acts of the defendants and to otherwise deprive plaintiffs of due process of law, to cause the acts or failures upon which liability is based.

WHEREFORE, plaintiffs demand judgment against the defendants as follows:

- (i) Compensatory damages in an amount that exceeds the jurisdictional limits of all lower courts, and that is just, reasonable, and fair;
- (ii) Punitive damages, against the individual defendants, in an amount that is just, reasonable, and fair;
- (iii) Attorneys' fees and the costs of this action;
- (iv) Such other relief as is fair, just, or equitable.

Dated: New York, New York
February 5, 2014

BY: 

John Tumelty, Esq.
Tumelty & Spier, LLP
Attorneys for Plaintiff
160 Broadway, Suite 708

New York, New York 10038
(212) 566-4681
Fax (212) 566-4749

VERIFICATION

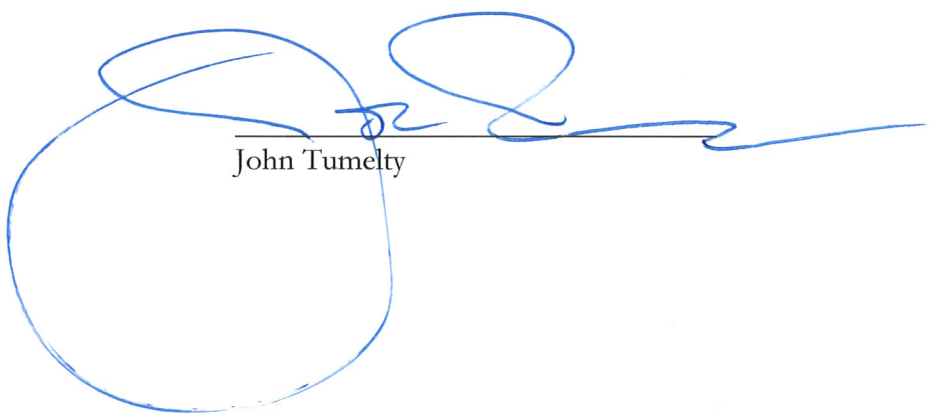
STATE OF NEW YORK
COUNTY OF NEW YORK

JOHN TUMELTY, an attorney at law, duly admitted to practice before the Courts of the State of New York, hereby affirms the following under the penalty of perjury and pursuant to the CPLR:

I am not a party to this action, I am over 18 years of age, and I reside in Queens County.

I have read the foregoing Complaint and know the contents thereof; the same is true as alleged, or upon information and belief, and as to those matters, I believe them to be true. The grounds of my belief as to all matters not stated upon my own knowledge are the police reports regarding the arrests, my investigation of the case, and conversations with the Plaintiff herein.

Dated: February 5, 2014
New York, New York



John Tumelty